

Additionally, the separate statement must link each material fact to the specific claim or issue. If it omits necessary facts, the judge *need not review* supporting declarations or other evidence. (C.R.C., Rule 3.1350(b); Weil & Brown, *Cal. Prac. Guide: Civ. Proc. Before Trial* (The Rutter Group 2026) Ch. 10-C, § 10:98; *Rio Linda Unified School Dist. v. Sup. Ct.* (1997) 52 Cal.App.4th 732, 740.)

Here, the Separate Statement for Issue 18 does not provide material facts showing that Hannah agreed to be a straw buyer, to return the Property on demand, or that any demand was made. It merely alleges a vague “particular transaction” and an unspecified deed of trust that was never transferred. There are no details about the transaction, the deed of trust, or any agreement terms sufficient to create a contractual duty for Hannah.

Issue 22: Plaintiff’s Separate Statement for Issue 22 asserts only: “Did Hannah Love ignore Micheal Jordan’s written demands to deed the property to him upon discovery of her breaches? YES.” The sole supporting evidence cited is Exhibit 8 of the TAC.

The Separate Statement does not set forth the material facts necessary to establish that Hannah had a duty to deed the Property to Plaintiff upon written demand. It contains no facts showing that Hannah agreed to return the Property upon demand, or that Plaintiff actually made such a demand. In the absence of these stated facts, none exist. (*North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 30-31.)

2.

CASE #	CASE NAME	HEARING NAME
CVME2507496	TAYLOR VS 25859 JEFFERSON AVENUE, LLC	MOTION TO APPOINT RECEIVER ON CROSS-COMPLAINT; MOTION TO COMPEL (AND JOINDER) COMPLIANCE WITH OPERATING AGREEMENT

Tentative Ruling:

Receiver: Sustain the objections to the Mazzarella Decl. ¶¶ 3-7, 9-10, the Taylor Decl. ¶¶ 11-12, and the De Goutiere Decl. ¶¶ 10-11. Overrule the objections to the Taylor Decl. ¶¶ 4-8 and the De Goutiere Decl. ¶¶ 7 and 9. Deny the motion.

A receivership pending suit is a provisional equitable remedy intended to maintain the status quo during litigation. (*Southern Cal. Sunbelt Developers, Inc. v. Banyan Ltd. Partnership* (2017) 8 Cal.App.5th 910, 925.) To obtain a receiver, a party must prove by a preponderance of the evidence that it has a joint interest in the property, the property is in danger of being lost, removed, or materially injured, and the party has a right to possession. (*Alhambra Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873.) The moving party must present admissible evidence of ongoing harm. (*Id.*)

The appointment of a receiver is a drastic remedy, reserved for exceptional cases. It should be used only when absolutely essential and no other remedy will suffice. (*Medipro Medical Staffing, LLC v. Certified Nursing Registry, Inc.* (2021) 60 Cal.App.5th 622, 628; *City & County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, 744; *Cohen v. Herbert* (1960) 186 Cal.App.2d 488, 495 [“The remedy is an extraordinary and harsh one, to be allowed cautiously and only where less onerous remedies would be inadequate or unavailable.”].) If a less severe remedy can adequately protect the parties’ rights, the court should not take property from its

owners. (*Golden State Glass Corp. v. Superior Court of Los Angeles County* (1939) 13 Cal.2d 384, 393.) The court has broad discretion to determine whether appointment is necessary. (*Gold v. Gold* (2003) 114 Cal.App.4th 791, 808.)

In California, a receiver may be appointed only as authorized by C.C.P. § 564. (*Barclays Bank of Cal. v. Sup. Ct.* (1977) 69 Cal.App.3d 593.) Plaintiffs request a receiver under C.C.P. § 564(b)(1), which allows appointment in actions between partners or joint owners when the property is in danger of being lost, removed, or materially injured.

Plaintiffs argue a receiver is necessary because the loan on the Property was in default and foreclosure was possible. However, the evidence shows Plaintiffs contributed to the default by refusing to sign a guaranty needed for an extension to refinance. (See, Decl. of John E. Bowerbank [“Bowerbank Decl.”], Ex. B.) Plaintiffs later agreed to sign, and the Bank removed the default rate. (Bowerbank Decl., Ex. C.) There is no evidence the Property is currently in default or at risk of foreclosure. Thus, there is no showing the Property is in danger of being lost, removed, or materially injured. (C.C.P. § 564(b)(1).)

Plaintiffs further contend a receiver is needed due to the Individual Defendants' alleged conflict of interest as owners of CCH, the tenant. They claim Defendants prioritize CCH by failing to pay market rent and neglecting repairs. This issue is heavily disputed, and even if true, does not establish that the Property is in danger of being lost, removed, or materially injured. (C.C.P. § 564(b)(1).) Defendants note the Property has over \$5 million in equity [see, Mazarella Decl. at ¶¶ 6, 8], which eliminates any real danger of loss. If Plaintiffs prove breach of fiduciary duty or underpayment of rent, monetary damages would be available. Less drastic remedies exist. Plaintiffs, as LLC members, have the right to participate in management but have chosen not to. Involving all members could reduce any alleged conflicts of interest. Accordingly, Plaintiffs have not met their burden to justify appointing a receiver.

Motion to Compel Compliance with Operating Agreement: Grant Plaintiffs’ Request for Judicial Notice of Defendants’ opposition to the motion to appoint a receiver and deny the request as to the Cap Rate Survey. Grant joinder. Deny the motion.

Individuals Defendants move for an order compelling Plaintiffs to comply with the Operating Agreement for the LLC by completing the application process set forth therein. They cite no authority for the relief they seek—instead, this relief appears to be that of a preliminary injunction. Therefore, the motion will be treated as such.

Probability of Prevailing: Individual Defendants argue that the Operating Agreement prohibits dissolution and instead requires a member who wishes to end their membership to follow the application process set forth in the agreement. (Motion, pp. 4:10-5:3, 5:21-6:2 [“the Operating Agreement prevents dissolution of Jefferson when at least one member of Jefferson wishes to continue the business”].) However, “an operating agreement may not vary—or waive—a member's right to seek judicial dissolution in the circumstances identified in former section 17351.” (*Meads v. Driggers* (2025) 114 Cal.App.5th 28, 39.) The Operating Agreement provides that it shall continue until any of the following:

- a) Members whose capital interest as defined in Article 2.2 exceeds 50 percent vote for dissolution; or

b) Any event which makes it unlawful for the business of the Company to be carried on by the Members; or

c) Any other event causing dissolution of this Limited Liability Company under applicable state laws. (Decl. of Tae H. Lee [“Lee Decl.”], Ex. 1, § 1.3(a)-(c) [emphasis added].)

It then states: “Notwithstanding the provisions of ARTICLE 1.3, in the event of an occurrence described in ARTICLE 1.3(c), if there is at least one remaining Member, the remaining Member(s) shall have the right to continue the business of the Company.” (*Id.* at § 1.4.) Individual Defendants appear to argue that, based on section 1.4, there can never be a judicial dissolution of the LLC if at least one member wishes to continue the business. (Motion, pp. 5:18-6:2.) However, an operating agreement cannot waive a member’s right to judicial dissolution, and any portion of an agreement that is contrary to a provision of law is unlawful, void, and unenforceable. (*Meads, supra*, 114 Cal.App.5th at 39-40.) Because the provision on which Individual Defendants base their argument is unenforceable, they have not, and cannot, establish a probability of prevailing on the merits of their claim.

Irreparable Harm: The Individual Defendants do not provide evidence of immediate or irreparable harm. They claim that Plaintiffs’ failure to comply with the Operating Agreement “is adding to the bank’s insecurities” [Motion, pp. 10:26-11:7]. However, a party’s fear that something bad might happen in the future is not sufficient to justify a preliminary injunction. (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) Furthermore, because the Individual Defendants have not shown they are likely to succeed on the merits of their claim, any potential harm is inadequate to support the requested relief. (See, *O’Connell, supra*, 141 Cal.App.4th at 1463, 1481.)

No Basis for a Mandatory Injunction: The requested relief—forcing Plaintiffs to sell their membership interest in the LLC—is mandatory and is exactly what the Cross-Complaint seeks. This type of relief is improper. (*Ibid.*) Therefore, even if the Petitioner could show it was likely to prevail on the merits (which it has not), it would still not be entitled to this relief.

3.

CASE #	CASE NAME	HEARING NAME
CVME2510477	CREDITORS ADJUSTMENT BUREAU, INC., VS BALLESTEROS	MOTION FOR ORDER THAT THE TRUTH OF MATTERS BE DEEMED ADMITTED

Tentative Ruling: Grant the motion and deem the matters admitted as to RFA Set One, and Grant \$972.75 sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVME2511978	TOM VS. MADRIGAL	EX PARTE TO DIMISS FOR FAILING TO AMEND THE COMPLAINT

Tentative Ruling: Grant Plaintiff five days to file the amended complaint. Grant \$1,824.35 sanctions for delay, payable within 30 days. Continue the CMC and OSC to November 17, 2026.